reduce them to one, is a work of more time and delay than the exigencies of ſtate will afford. The king of England is therefore not only the chief, but properly the ſole, magiſtrate of the nation; all others acting by commiſſion from, and in due ſubordination to him: in like manner as, upon the great revolution in the Roman ſtate, all the powers of the antient magiſtracy of the commonwealth were concentred in the new emperor; ſo that, as Gravina[b] expreſſes it, "*in ejus unius perſona veteris reipublicae vis* "*atque majeſtas per cumulatas magiſtratuum poteſtates exprimebatur.*"

AFTER what has been premiſed in this chapter, I ſhall not (I truſt) be conſidered as an advocate for arbitrary power, when I lay it down as a principle, that in the exertion of lawful prerogative, the king is and ought to be abſolute; that is, ſo far abſolute, that there is no legal authority that can either delay or reſiſt him. He may reject what bills, may make what treaties, may coin what money, may create what peers, may pardon what offences he pleaſes: unleſs where the conſtitution hath expreſſly, or by evident conſequence, laid down ſome exception or boundary; declaring, that thus far the prerogative ſhall go and no farther. For otherwiſe the power of the crown would indeed be but a name and a ſhadow, inſufficient for the ends of government, if, where it's juriſdiction is clearly eſtabliſhed and allowed, any man or body of men were permitted to diſobey it, in the ordinary courſe of law: I ſay, in the *ordinary* courſe of law; for I do not now ſpeak of thoſe *extraordinary* recourſes to firſt principles, which are neceſſary when the contracts of ſociety are in danger of diſſolution, and the law proves too weak a defence againſt the violence of fraud or oppreſſion. And yet the want of attending to this obvious diſtinction has occaſioned theſe doctrines, of abſolute power in the prince and of national reſiſtance by the people, to be much miſunderſtood and perverted by the advocates for ſlavery on the one hand, and the demagogues of faction on the other. The former, obſerving the abſolute ſovereignty and tranſcendent dominion of the crown laid down (as it certainly is) moſt

[b] *Orig.* 1. §. 105.